

SENATE BILL 44

By Lamar

AN ACT to amend Tennessee Code Annotated, Title 63
and Title 71, relative to doulas.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 71-5-107(a), is amended by adding the following as a new subdivision:

(29) Doula services performed by a person who has received a verification of certification to perform doula services from the department of health pursuant to § 63-1-177. As used in this subdivision (a)(29), "doula services" means a service that provides continuous emotional and physical support throughout labor and birth and intermittently during the prenatal and postpartum periods.

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

63-1-177.

(a) As used in this section:

(1) "Commissioner" means the commissioner of health;

(2) "Department" means the department of health; and

(3) "Doula services" means a service that provides continuous emotional and physical support throughout labor and birth and intermittently during the prenatal and postpartum periods.

(b) Using the findings and recommendations of the doula services advisory committee, as described in § 63-15-103, the commissioner shall establish by rule a process by which the department issues a verification of certification to a person who

has demonstrated the following by providing proof of completion of a doula training program recognized by the commissioner:

- (1) An understanding of basic anatomy and physiology as related to pregnancy, the childbearing process, breastfeeding or chest feeding, and the postpartum period;
- (2) The capacity to employ different strategies for providing emotional support, education, and resources during the perinatal period;
- (3) Knowledge of and the ability to assist families with utilizing a wide variety of nonclinical labor coping and physical comfort strategies;
- (4) An awareness of strategies to foster effective communication between clients, their families, support services, and healthcare providers; and
- (5) Knowledge of community-based, publicly and federally funded, and clinical resources available to the client for any need outside the doula's scope of practice.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.